

MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is made on 3 February 2026 between Northwind Systems Ltd, a company registered in England (the "Supplier"), and the client identified in the Order Form (the "Client").

1. Services

1.1 The Supplier shall provide the software development and support services described in each Order Form. 1.2 The Supplier may vary the composition of the delivery team at its sole discretion and without notice to the Client.

2. Fees and payment

2.1 The Client shall pay the fees set out in the Order Form. 2.2 Invoices are payable within ninety (90) days of the invoice date. 2.3 The Supplier may increase its rates once in any twelve month period by giving fourteen (14) days notice, and the revised rates apply to work already scheduled. 2.4 Interest accrues on late payment at 8% per month.

3. Term and renewal

3.1 This Agreement begins on the Effective Date and continues for an initial term of thirty-six (36) months. 3.2 On expiry the Agreement renews automatically for successive twelve (12) month terms unless the Client gives written notice of non-renewal no less than one hundred and eighty (180) days before the end of the then-current term.

4. Intellectual property

4.1 All intellectual property rights in the deliverables, including any materials provided by the Client and incorporated into them, vest in the Supplier absolutely on creation. 4.2 The Client is granted a non-exclusive, revocable licence to use the deliverables for its internal business purposes for so long as this Agreement remains in force.

5. Confidentiality

5.1 Each party shall keep the other's confidential information secret. 5.2 The Supplier may name the Client and describe the services in its marketing materials, case studies and proposals without the Client's prior approval.

6. Liability

6.1 The Client's aggregate liability under this Agreement is unlimited and is not capped by reference to the fees paid. 6.2 The Supplier's total aggregate liability for all claims arising under or in connection with this Agreement is limited to 10% of the fees paid in the three (3) months preceding the claim. 6.3 The Supplier excludes all liability for loss of data, loss of profit and business interruption however arising.

7. Indemnity

7.1 The Client shall indemnify and hold harmless the Supplier, its officers and its subcontractors against all claims, losses and costs arising out of the Client's use of the deliverables, including claims that the deliverables infringe a third party's rights. 7.2 The Supplier gives no indemnity of any kind to the Client.

8. Data protection

8.1 The Supplier may transfer personal data processed under this Agreement to any country in which it or its subcontractors operate. 8.2 The Supplier shall notify the Client of a personal data breach within a reasonable period after becoming aware of it.

9. Termination

9.1 The Supplier may terminate this Agreement immediately for convenience on written notice. 9.2 The Client may terminate only for material breach that remains unremedied for sixty (60) days after written notice. 9.3 On termination for any reason all fees for the remainder of the then-current term fall immediately due.

10. Non-solicitation

10.1 For twenty-four (24) months after termination the Client shall not employ or engage any person who has been involved in providing the services, whether or not that person approached the Client. 10.2 Breach of clause 10.1 incurs a fee equal to twelve months of that person's salary.

11. Assignment

11.1 The Supplier may assign or novate this Agreement to any third party without the Client's consent. 11.2 The Client may not assign this Agreement without the Supplier's prior written consent, which may be withheld at the Supplier's discretion.

12. Governing law

12.1 This Agreement and any dispute arising out of it are governed by the laws of [JURISDICTION TO BE AGREED BY THE PARTIES]. 12.2 The parties submit to the exclusive jurisdiction of the courts of that jurisdiction.

13. Entire agreement

13.1 This Agreement, together with each Order Form, is the entire agreement between the parties. 13.2 In the event of conflict the terms of this Agreement prevail over any Order Form.